Potentiam

Potentiam Ltd
2 Kingdom Street,
London,
W2 6BD
("The Company")
Tel: + 44 (0)203 884 4447
E-Mail: info@potentiam.co.uk

Client Instruction Form

Client Name (Holding Company)	
Address:	
Post Code:	
Company Reg.	
VAT Number:	
Financial Director (or equivalent) title:	
Name:	

Client Contact	
Email Address:	
Telephone:	
Position:	
Date	

Tel:	
Email:	

ANNUAL COSTINGS				'Once off' Costs
Roles to be Hired	**Target Salary Range**	**Office**	**Technology**	**Recruitment (%) Cost**
1.	Appendix 1			Appendix 1
2.	Appendix 1			Appendix 1
3.	Appendix 1			Appendix 1
5.				
6.				
7.				
8.				
9.				
10.				

THE CLIENT HEREBY AUTHORISES THE ABOVE ROLES TO BE RECRUITED AT THE TARGET SALARY DETAILED ABOVE, SUBJECT TO THE CLIENT'S FINAL SIGN-OFF ON THE SELECTED CANDIDATE FOR EACH ROLE AND THEIR ACTUAL SALARY CHARGE. THE ABOVE ROLES TO BE SUBJECT TO THE COMPANY'S CURRENT SIGNED TERMS OF BUSINESS WITH THE CLIENT.

Client

Name: _____

Position: _____

Date: _____

Sign: _____

Potentiam Ltd

Name: _____

Position: _____

Date: _____

Sign: _____

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Copy of Appendix 1: Service Level's for Recruitment, On-boarding & Human Resources

(as contained in the signed Terms of Business)

For each Resource

RECRUITMENT			
	Activity	**The Company will use their best endeavours to carry out the following activities:**	**The Client will use their best endeavours to carry out the following activities:**
1.	**Job Specification**	Agree Job specification, Skills Set Matrix and KPIs for each Role with Client to the point of Client 'sign off' Where a technical Role, agree on the technical tests for the candidates to be asked to carry out to demonstrate their technical capabilities. (We will provide you with our recommended technical tests for your review, amendment or addition to, if needed with final signed authorisation to use)	Amend as necessary in discussion with the Company, the Job Specification, Skill Set Matrix and KPIs provided by the Company to the point of 'sign off'. Respond promptly to any questions or clarifications on the Role and how it fits in with the existing team structure. Where a technical Role promptly review and agree the technical tests proposed by the Company (or add where required) for each Role to be undertaken by candidates

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2.	**Candidate Search**	Run a local search for suitable candidates	Provide on-going feedback on applicability of proposed candidates if needed (essential for the more technical/professional roles)
3.	**Search Reporting**	Provide a weekly progress report on candidate search progress.	Provide available times & dates for interviews to be conducted once shortlist finalisation is nearing
4.	**Interviews and candidate selection**	Supply a short list of candidates with comparative analysis against the Job Specification, Skills Set Matrix, and technical tests if required for the role. If no candidates on the short list are deemed a good fit to review the Job Specification, Skills Set Matrix and KPIs and Technical tests amend/update, if appropriate, and re-run the search.	Promptly review and discuss each candidate on the short list and carry out the interviews and any additional tests or reviews required to be able to complete the assessment and select the chosen candidate. Select the best candidate to be made the Role offer.
5.	**Candidate Resource Sign-Off**	Provide a Resource Sign-Off Form containing Role, Title, total Resource Salary Charge, hours of work, holidays, forecast next year's budget total costs commensurate with Role development (if any) and any additional benefits if provided plus the desired start date for signature by the Client.	Sign the provided Resource Sign-Off Form containing: Role, Title, total Salary Cost, hours of work, holidays, forecast next year's total costs commensurate with Role career development and any additional benefits if provided plus the start date accepting the selected candidate.
6.	**Candidate Offer Letter Sign Down & Start Date Confirmation**	Obtain candidate signature to Offer Letter & confirmation of start date. Once signed, provide a contract of employment for signature by the candidate subject to any references or other checks that may be required by the Client.	
7.	**References & Other checks**	Conduct references checks where applicable and required. Discuss the references received back and obtain Client confirmation	Request references & other checks if required. (additional costs maybe applied depending on 'other checks' requested)

		of satisfactory references and proceed with hiring.	Review references received and confirm 'confirmation of satisfactory reference - proceed with hiring'

ON-BOARDING PROCESS

	Activity	The Company will use their best endeavours to carry out the following activities:	The Client will use their best endeavours to carry out the following activities:
8.	**Premises and IT**	Provision of location in office and a desk, chair, Internet connection and Standard Provision of IT Hardware & Operating System for a Resource to carry out their duties plus any additional technology requirements requested for the Role.	Provide advance direction on any specific additional IT Hardware or facilities requirements over and above the 'standard issue' provided.
9.	**Set up 90 Day 'On-Boarding' Process for Probation Period**	The Company will provide a template for the 90 day 'on-boarding process' Discuss and finalise with the client the 90 day on-boarding plan ready for use. Agree the appropriate KPIs for the probation period. Complete the Potentiam induction.	Review, discuss, amend and agree the 90 day 'on-boarding process' for each Resource who has been hired. Sign down the 90 day 'on-boarding process' including the initial probation KPIs appropriate. Provide the name, position and full contact details of the individual who is undertaking the probation review. Clarify which senior manager has the final decision on satisfactory performance (provide full contact details).
10.	**Probation Period Review Points**	Provide regular structured Feedback during the probation period as agreed in the 90 day on-boarding plan on each of the new Resource's progress in the role.	Provide Feedback on each Resource's performance and progress during the probation period as per the agreed 90 day on-boarding plan. Attend the structured check-ins with the Company by the assessing manager. Raise any concerns/issues as and when they occur (timeously) and

			agree specific actions to be taken to resolve the issues.
11.	**Confirm Successful Probation**	Obtain written confirmation from the Client of the Resource(s) successful completion of probation. Re-confirm with the Client the KPIs originally set for the Role are still correct. Agree any adjustments with the Client as appropriate.	Sign off the confirmation to the Company of the Resource(s) successful completion of probation in a timely manner to meet the 90 day probation period. Confirm the KPIs for the role after probation and agree to any adjustments as required.
		Notify the Resource of their successful completion of Probation.	
12.	**Fail Probation**	If the Resource fails to successfully pass probation to agree with the Client to either extend the Resource's probation* or end the Resource's employment and commence the recruitment of a new Resource to replace the unsuccessful one.	Decide on whether to extend the Resources probation* or to rehire another Resource to replace the unsuccessful one. *(* please note some Territory labour laws have restrictions on probation periods)*

HUMAN RESOURCES

	Activity	**The Company will use their best endeavours to carry out the following activities:**	**The Client will use their best endeavours to carry out the following activities:**
13.	**Career plan**	Discuss each Resource's career plan from their current Role as identified in the Vertical Stack relevant to their Role and the Salary level forecast for the Territory over the next 12-36 months	Agreement of a retention plan and career track and proposed Salary cost expectation for each Resource over the next 12-36 months.
14.	**Training**	Assist in arranging training (at the client's expense) for each Resource as agreed for the role and the individual Resource's Career Plan.	Provide training plan and agree who will carry out the training and when.

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15.	**Monthly HR Report including Staff Monitoring**	Monitor working behaviour & attendance, sickness and holiday of each Resource & present a monthly report on all Resources. ('Monthly HRBP Report') (or more frequently if deemed necessary for some Resources)	Review the Monthly HRBP Report and agree to any actions with the HRBP that are required.
		Review each Resource's KPIs vs performance as agreed at the point of recruitment OR as amended in writing.	Provide the required information on each Resource's KPIs to the HRBP to accurately report performance against each agreed KPI measure for the role.
		Each month through the Company HRBP discuss the findings of the: a. KPIs b. working behaviour c. attendance, sickness and holiday for each Resource with the Client to review any identified issues.	Set a date for a regular monthly meeting to discuss the findings of the monthly HR reports covering a. KPIs b. working behaviour c. attendance, sickness and holiday with the allocated Company HRBP to review any identified issues.
		Where shortcomings in performance of any Resource are found to advise & agree with the Client the actions to be taken. (always being consistent with the Labour Laws of the Territory).	In the monthly HRBP meeting (or promptly soon after) agree specific actions to be taken on any performance issues identified.
		Where the issues identified require consultation with the Head of HR in the Territory concerned arrange a prompt meeting with the Client to discuss and agree next actions	Where the issues identified require consultation with the Head of HR in the Territory concerned arrange a prompt meeting with the Client to discuss and agree next actions
16.	**Appraisal**	Assist the Client in performing a '6 monthly' mini-appraisal and a '12 monthly' full appraisal. Provide guidance on Salary forecasts as appropriate for each	Provide timely **(within 5 working days)** performance Feedback to Resources and the Company following the completion of each Resource's Appraisal. Highlight any identified issues that raise concerns about each Resource's ability to perform their

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		Resource (annually for seniors and more frequently for juniors). Agree with the Client specific actions for each Resource as identified from the Appraisal and agree to any Salary change.	role, keeping the Company fully informed of such feedback (within 5 working days) of Appraisal completion. On receipt of the Salary guidance from the Company confirm a decision on any recommended change promptly **(within 5 working days).**
17.	**Annual Salary & Role Review**	Provide annual Salary and Role guidance for the Resource concerned and recommend what the Company analysis suggests the Salary change (if any) should be for the coming year and the best forecast for the next year. (based on career progression and market conditions) Once discussed and agreed with the Client the production of the revised Role and/or Salary and any additional benefits and/or bonuses and date of commencement of the new Salary in the Potentiam Salary Change form for Client signature for implementation. If a junior role is in a competitive sector a salary review may need to occur every 4-6 months	Review the Role & Salary guidance provided by the Company for each Resource each year and agree to any changes to be made. Promptly sign the annual agreed Role & Salary Change Form so the Company can affect any change required. Complete the same.
18.	**Bonus Confirmation (If any)**	Confirm the eligibility of any bonus payment as per the Resource Sign-Off Form previously agreed. Obtain signed authorisation for the bonus amount to be paid via the "Potentiam Bonus Payment Approval Form" from the Client. Authorise finance to pay the bonus to the Resource(s) concerned.	Confirm the eligibility and amount of any bonus for each Resource via the prompt signing of the "Potentiam Bonus Payment Approval Form".

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Copy of Appendix 2:
Service Level for Account Management

(as contained in the signed Terms of Business)

For the Client

ACCOUNT MANAGEMENT			
		The Company will use their best endeavours to carry out the following activities:	**The Client will use their best endeavours to carry out the following activities:**
1.	**Account Management**	Provision of an account manager that will promptly and appropriately respond to issues raised by the Client.	Respond promptly and appropriately to any issue raised by the account manager using the required level of seniority appropriate for the matter.
		Perform regular account reviews with the Client every quarter or as requested by the Client.	Participate fully in account reviews with the appropriate level of seniority in a timely manner.
2.	**Talent Acquisition & HR Teams introductions**	To introduce and support the Company Talent Acquisition and HR Teams to ensure a sound understanding of a Client's needs to ensure both teams are correctly and fully briefed.	To ensure clear communication of specific needs for any new Resource to the recruitment team and any changes to existing Resource(s) through the appointed account manager.
		To assist in explaining local protocols and customs in the Territory concerned that may impact any role being hired.	To take on board any advice on local protocols and customs and Feedback on how any aspect might impact any Resource being hired or is already a Resource.
3.	**Guidance on any item of the Commercial Terms**	To provide guidance and explanation on any aspects of the commercial agreement.	To raise all commercial requests directly to the Potentiam Account Manager including salary intelligence, training, facilities and services.

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4.	**Issue Resolution**	To provide a final point of escalation for all HR and service issues to Client stakeholders as well as all commercial issues. e.g. salary increases, training course costs, and any other out of the ordinary costs.	Ensure the Account manager is copied in on any HR related queries

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Terms of Business

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INTERPRETATION

The definitions and rules of interpretation in this clause apply to these terms of business:

Agreement: the agreement between the Company and the Client for the supply of Services which is subject to and incorporates these terms of business, and which includes the Resource Instruction Form and all schedules, appendices and other attachments to any of the foregoing;

Applicable Data Protection Legislation: means all applicable data protection and privacy legislation in force from time to time in the UK, and the EU where applicable, including, where applicable, the General Data Protection Regulation ((EU) 2016/679), the Data Protection Act 2018 (**DPA**) (and regulations made thereunder) or any successor legislation, and the UK GDPR (which has the meaning given to it in section 3(10) (as supplemented by section 205(4)) of the DPA, and all other legislation and regulatory requirements in force from time to time which apply to a party relating to the use of personal data (including, without limitation, the privacy of electronic communications);

Applicable Laws: all applicable laws, statutes, regulations and codes from time to time in force;

Business Day: a day, other than a Saturday, Sunday or public holiday in the UK;

Client: the party specified in the Agreement as the recipient of the Services

Company: Potentiam Ltd, company registration number 08645537;

Company Fee: the amount to be retained by the Company in respect of the provision of the Services and/or as specified in the Resource Instruction Form;

Controller, Data Protection Officer, Data Subject, Joint Controllers, Personal Data, Processing, and Processor Personal Data Breach: each has the meaning given to it in the Applicable Data Protection Legislation;

EU GDPR: means the General Data Protection Regulation (*(EU) 2016/679*), as it has effect in EU law**;**

Feedback: means providing accurate assessment as to the performance of any Resource versus their KPIs or other agreed performance measures within the time measurement period agreed or raising any concerns/issues about any Resource arising during either the 90-day Probation Period, subsequent HRBP Monthly Reports, Appraisal(s) or generally at the appropriate time.

Group Company: in relation to either the Client or the Company, any subsidiary or holding company from time to time of that company, any subsidiary from time to time of a holding company of that company (holding company and subsidiary company having the meaning given by section 1159 Companies Act 2006) and any legal entity in which the Client or the Company (as the case may be) or any such subsidiary or holding company holds an equitable financial interest of more than 25%, and **Group Companies** shall be interpreted accordingly;

Intellectual Property Rights: patents, rights to inventions, copyright and related rights, trademarks, business names and domain names, rights in get-up, goodwill and the right to sue for passing off, rights in designs, database rights, rights to use, and protect the confidentiality of, confidential information (including know-how), and all other intellectual property rights, in each case whether registered or unregistered and including all applications and rights to apply for and be granted, renewals or extensions of, and rights to claim priority from, such rights and all similar or equivalent rights or forms of protection which subsist or will subsist now or in the future in any part of the world;

Job Specification: a job specification for the relevant Role, including the information set out in the Resource Instruction Form;

Losses: any claims, proceedings, liabilities, losses, damages, fines, costs and expenses;

Monthly Charges: the Salary Charge, the Premises Charge and the Technology Charge;

Permitted Recipients: the Parties to the Agreement and the directors, officers, employees, agents, consultants and suppliers of a Party and/or of any third party engaged in the performance of its obligations under the Agreement;

Purpose: the purposes for which the Personal Data is processed, as set out in the Agreement;

Premises: the premises and office facilities provided to the required legal standards for the daily safety, health & welfare of the relevant Resource to be provided by the Company in the Territory as specified in the Resource Instruction Form;

Premises Charge: the charge for the costs of providing the Premises for the relevant Resource (as varied pursuant to clause 5.9);

Reasonable Use: the number of times the free re-recruitment of a Resource who fails probation can occur before the repeat recruitment becomes chargeable which is after the 2nd time of doing so, subject to cause;

Recruitment Charge: the recruitment charge specified in the Resource Instruction Form;

Resource: the person who is recruited by the Company and employed by a Group Company of the Company to perform the Role;

Resource Instruction Form: the form signed by the Client instructing the Company to hire a Resource for a specified role and detailing the Resource start date, the Recruitment Charge, the proposed Salary Charge (including any bonuses), the Technology Charge, the Premises Charge, and a forecasted Salary Charge increase schedule;

Role: the duties to be performed by the Resource as set out in the Job Specification;

Role KPIs: the key performance indicators applicable to the relevant Role by which monthly performance of the Role will be measured against to confirm satisfactory or unsatisfactory performance of the Role;

Salary or Salary Charge: the amount actually paid by the Company's Group Company to the Resource as salary, (including all government employment or equivalent taxes applicable in the relevant jurisdiction, pension contributions, holiday and sick pay, local employment benefits and all other employment costs and as varied pursuant to clause 5.9 including the Company Fee; In the event of a termination of a Resource the addition of any untaken holiday, accrued bonuses or redundancy payments as legally due under the Territory Labour Laws.

Services: the services to be performed by the Company as set out in clause 2;

Skills Set Matrix: the detailed technical and professional skills, experience and capability required for the relevant Role;

Standard Provision of IT Hardware & Operating System for a Resource: the standard laptop computer & operating system, headphones, keyboard & mouse provided by the Company to each Resource.

Territory Labour Laws: the labour laws that exist in the geographic location of the employment of a Resource by a Group Company of the Company for the Client.

Termination Notice: Written notice from one party to the other terminating either the whole Agreement OR a Resource or Resources

Technology Charge: the charge for the costs of providing IT facilities at the Premises specific to the needs of the relevant Resource (as varied pursuant to clause 5.9);

Territory: the country in which the relevant Resource is employed;

UK GDPR: has the meaning given to it in section 3(10) (as supplemented by section 205(4)) of the Data Protection Act 2018;

Year: each period of one year commencing on the date of the Agreement;

The schedules and appendices are part of these terms of business of business and shall have effect as if set out in full in the body of these terms of business of business.

A reference to one gender includes the other gender.

A reference to a statute or statutory provision is a reference to it as amended, extended or re-enacted from time to time.

A reference to writing or written includes e-mail.

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1.0 BASIS OF CONTRACT AND KEY TERMS

1.1. The Agreement shall come into existence and become legally binding on the date it is signed by both parties.

1.2. The Agreement is subject to, incorporates and shall be governed by these terms of business.

1.3. These terms of business apply to the Agreement to the exclusion of any other terms that the Client seeks to impose or incorporate, or which are implied by trade, custom, practice or course of dealing.

1.4. THE CLIENT AGREES THAT TIME IS OF THE ESSENCE IN RELATION TO THE PAYMENT OF THE MONTHLY CHARGES ON THE DUE DATE OF THE ON THE 23RD OF EACH MONTH *(or if the 23rd falls on a day which is not a business day, the immediately preceding business day)* AS FURTHER DETAILED IN CLAUSE 5. THE CLIENT ACKNOWLEDGES THAT THE REQUIREMENT TO PAY SUCH CHARGES WHEN DUE EVERY MONTH WITHOUT EXCEPTION, WITHHOLDING OR SET-OFF OF ANY KIND *(as it does its own payroll for its directly-employed staff)* IS A FUNDAMENTAL TERM OF THE AGREEMENT AND WARRANTS THAT IT SHALL COMPLY WITH SUCH REQUIREMENT AT ALL TIMES.

1.5. The Client will maintain a credit rating of not less than the level to be agreed between the parties at the beginning of the Agreement, and reviewed annually (on the Agreement anniversary) which if it drops below at any point during the provision of the Agreement the Company may ask the Client for a deposit of up to 2 months Monthly Charges per Resource. In the event of the Company asking the Client for a deposit for each Resource the Client will provide such deposit within 30 days.

1.6. Both the Company and the Client will nominate a main contact for each party who will be responsible for the overall management of the Agreement and in addition the Client will provide the name and contact details of the most senior financial employee for the Company's finance team to set up the financial process for payments and credit management matters. Each party confirms that such person shall have authority to contractually bind it on all matters relating to the Services.

2.0 SUPPLY OF SERVICES

2.1. These terms of business set out the agreement between the Company and the Client for the supply of individual Resource(s) by the Company to the Client, which shall include the following:

<u>The Company will provide the following Services in respect of each **Resource:**</u>
2.1.1. Recruitment & Onboarding as set out in ***Appendix 1***
2.1.2. HR Services as set out in ***Appendix 1***

<u>The Company will provide the following Services **to the Client:**</u>
2.1.3. An HR Strategy Review as set out in ***Appendix 2***
2.1.4. Account Management Services as set out in ***Appendix 2***

<u>The Company will provide the following additional Services **upon request:**</u>
2.1.5. Advisory Services as set out in ***Appendix 3***

The Company shall:

2.2. supply the Services to the Client in accordance with the Agreement in all material respects.

2.3. use reasonable endeavours to meet any performance dates specified in the Agreement.

2.4. have the right to make any changes to the Services which are necessary to comply with Applicable Laws or any regulatory or safety requirements, or which do not materially affect the nature or quality of the Services, and the Company shall notify the Client in advance of any such change.

3.0 JOB SPECIFICATION, SKILL SET MATRIX AND ROLE KPI'S

3.1. The Client shall provide the Company with a Resource Instruction Form for each relevant Role.

3.2. The Company will produce a draft Job Specification, Skills Set Matrix and Role KPIs in accordance with the Resource Instruction Form. The Client will review the proposed Job Specification, Skills Set Matrix and Role KPIs and the parties shall work together to agree the content of such documents.

3.3. The Job Specification, Skill Set Matrix and Role KPIs will together contain all the details required to correctly assess candidates' fitness for the relevant Role by reference to:

a) relevant experience, training, qualifications or authorisations which the Client considers are necessary or which are required by Applicable Laws or by any professional body for the Resource to possess;

b) any other relevant information as is necessary or desirable to carry out the Role.

c) the target start date.

3.4. The Company will not commence the search for the Resource until the Job Specification, Skill Set Matrix and Role KPIs for the relevant Role have been agreed between the parties. The Client will be required to 'sign-off' all three items; the Job Specification; the Skill Set Matrix and the Role KPIs and such "sign-off" shall confirm its approval.

3.5. The Company will use its reasonable endeavours to recruit a Resource who will materially satisfy the requirements of the Job Specification, Skill Set Matrix and Role KPIs and who will be available to commence the Role by the target start date specified in the Job Specification, however the Company gives no warranty in this respect and will have no liability to the Client for any failure of a Resource to meet such requirements or delay in the recruitment. The Client acknowledges and agrees that it is solely responsible for the final interview process and selection of the Resource for the Role and the decision to employ the candidate.

4.0 EMPLOYMENT OF RESOURCES

4.1. A Group Company of the Company will employ the Resource and will be responsible for the payment of all salary and other employment costs in relation to that Resource.

4.2. The Client shall be responsible for day-to-day supervision and management of the Resource so as to ensure that the Resource performs the Role correctly and in accordance with the duties of the Role to the standards and requirements of the Client, the Job Specification, and the Role KPIs.

4.3. The Client shall provide Feedback on the performance of the Resource during any probation period at intervals as detailed in the 90-day probation plan agreed for each Resource prior to their commencement of employment.

4.4. The Client shall provide a copy of each appraisal of the Resource's performance at intervals no less than once every 12 months.

4.5. The Client shall not do anything (or omit to do anything) which would or might cause or result in the Resource committing a breach of its contract of employment with the Company.

4.6. The Resource will be entitled to time off for holidays, illness and other reasons in accordance with the terms of their employment contract and their employment rights under the Applicable Laws of the Territory.

4.7. If the Resource is unavailable to carry out the duties of the Role due to the reasons set out in clause 4.6 then the Company will not be responsible for the supply of any other person to carry out the Role during any such periods of absence, and the Client will remain responsible for all charges payable under clause 5 until the employment of the Resource has ended. If the Client does wish to recruit another person to carry out the Role then this would be subject to the terms of a separate Resource Instruction Form to be agreed between the Company and the Client.

4.8. Without prejudice to clause 7.3 the Company shall ensure that under the terms of the Resource's employment contract the Resource is contractually obliged to comply with:

a) all Applicable Laws relevant to the performance of the Role including Data Protection; and

b) a restriction not to disclose any confidential information of the Client which they may acquire in the course of performing the Role other than as necessary in order to perform the Role.

5.0 CHARGES

5.1. The Client will pay a Recruitment Charge to the Company for each Resource for which the Client has signed a Resource Sign-Off Form and the said Resource has signed their Offer Letter and commenced employment on the agreed start date or any amended agreed start date. The recruitment invoice will be due for payment in full on the date on which the Resource commences their employment.

(If a Resource fails to successfully pass their Probation period as stated in their Company employment contract (normally 3 months) the Company will provide a replacement Resource acceptable to the Client free of charge subject to Reasonable Use.)

5.2. The Client will pay for each Resource

a) the Salary Charge

b) the Office Charge

c) the Technology Charge

as all detailed in the 'Resource Sign-Off Form' signed by the Client (together the Monthly Charges).

to the Company as invoiced at the beginning of each calendar month by the Company to the Client, in pounds sterling, to an account nominated by the Company, prior to the 23rd of each month (or if the 23rd falls on a day which is not a Business Day, the immediately preceding Business Day) starting in the month in which the Resource commences its employment for the Role.

5.3. The Recruitment Charge and the Monthly Charges exclude any additional costs or expenses (including any travel expenses, accommodation, subsistence expenses, Resource bonuses or gifts) which the Resource incurs in carrying out the Role as required by the Client or which the Company's Group Company is required or asked to reimburse to the Resource. All such additional expenses or fees which are either expressly agreed under the Agreement or will otherwise be approved by the Client in writing in each instance prior to being incurred will be invoiced separately and due no later than 7 (seven) days from the invoice date.

5.4. **Time is of the essence** in respect of the payment of all charges under the Agreement **as detailed in clause 1.4** above and as such if a payment is not made on time the parties agree that the following late payment charges and the ceasing of work by some or all the Resources as detailed in clause 5.5 below are agreed and are reasonable.

5.5. Without prejudice to any other right or remedy that it may have, if the Client fails to pay the Company any sum due under the Agreement on the due date:

a) the Company will apply a daily late payment administration charge of £100 per day;

b) If payment has not been received in full by **the last day of the month** in which payment is due part or all work by the Resources employed by the Company for the Client will be suspended until such time as all overdue amounts are paid in full (and during a period of suspension of the Resources' services for non-payment all charges will still be due by the Client);

c) the Client shall pay interest on the overdue sum from the due date until payment of the overdue sum, whether before or after judgement. Interest under this clause will accrue each day at 8% a year above the Bank of England's base rate from time to time;

5.6. All sums payable to the Company under the Agreement:

a) are non-refundable; and

b) shall be paid in full without any set-off, counterclaim, deduction or withholding (other than any deduction of withholding tax as may be required by law).

5.7. The Salary Charge(s) will be calculated at the exchange rate used by the Company on the date of the Company's invoice being issued.

5.8. The Resource may be entitled to and/or expect an annual salary review each calendar year commensurate with their career progression and performance or in the event of any material changes to their duties in the Role during the year. Such Resource salary cost changes will be discussed in advance with the Client and agreed prior to proposing the Resource. The Salary Charge will be adjusted to reflect any agreed change to the Resource's remuneration and other employment benefits. The Client acknowledges and agrees that the Company shall have no responsibility for any termination of employment by the Resource, whether or not as a result of the Client's failure to agree to any salary change.

5.9. The Company will be entitled to increase the Premises Charge and the Technology Charge from the commencement of each year to reflect any reasonable increase in the costs of providing the relevant Premises or IT facilities. Such increases will be notified at least 90 calendar days in advance and if not acceptable to the Client the Client may terminate the employment of any applicable Resources by providing appropriate notice for each Resource as required during which time no cost increase will be applied.

5.10. Where government legislation is changed in any Territory that consequentially results in an increase in employment costs the Client agrees the Company may increase the costs of each Resource to the Client by an amount that will equal such increase to be applied from the date the new legislation becomes law in the territory concerned.

5.11. Where applicable, the Company shall charge VAT to the Client, at the prevailing rate, after the Company has provided the Client with a VAT invoice.

6.0 TERMINATION

WHOLE AGREEMENT

6.1. **The Client** may terminate the whole Agreement without cause at any time by providing the following periods of notice depending on the number of Resources employed by the Company for the Client in all Territories.

As the number of Resources employed for a Client increases (all of which have successfully completed probation) the notice period for the termination of all Resources will increase as follows:

No of Resources	Notice Period
4 of less	2 months
5-10	4 months
11-19	6 months

20+	12 months

6.2. **Either party**, without limiting its other rights or remedies, will be entitled to terminate the Agreement immediately (subject only to compliance with all applicable Territory Labour Laws in the territory(s) concerned for the termination of any Resources in clause 6.2.(a) to (c) (below) on giving written notice to the other party if:

a) the other party commits a material breach of any term of the Agreement and (if such a breach is remediable) fails to remedy that breach within a timely manner appropriate for the breach concerned from the date that party was notified of the breach; or

b) the other party takes or has taken against it (other than in relation to a solvent restructuring) any step or action towards its entering bankruptcy, administration, provisional liquidation or any composition or arrangement with its creditors, applying to court for or obtaining a moratorium under Part A1 of the Insolvency Act 1986, being wound up (whether voluntarily or by order of the court), being struck off the register of companies, having a receiver appointed to any of its assets, or its entering a procedure in any jurisdiction with a similar effect to a procedure listed in this clause (b); or

c) the other party suspends, or threatens to suspend, or ceases or threatens to cease to carry on all or a substantial part of its business.

6.3. **The Company**, without limiting any other right or remedy available to it, may terminate the Agreement by giving written notice, subject to the Territory Labour Laws applicable to each Resource employed, to the Client if:

a) the Client fails to pay any amount due under the Agreement on the due date for payment and remains in default for not less than 14 (fourteen) calendar days after being notified in writing to make such payment; or

b) the Client or a member of the Client's staff, acts in an unreasonable or inappropriate manner towards any Resource(s) and ceases to do so on notification, or the Client fails to remove the staff member from involvement with the Resources when such a request is made by the Company or otherwise fails to comply with its obligations under clause 4.5; or

c) the Client's credit rating as agreed under clause 1.5 falls below the minimum agreed level and the Client fails to provide the deposit per Resource requested by the Company within the timescale specified.

INDIVIDUAL RESOURCE TERMINATION

6.4. The Client will be entitled to terminate a Resource in the following circumstances:

a) immediately on giving written notice to the Company at any time prior to the recruitment of the Resource for the Role; or

b) during the probation period at any time after the appointment of the Resource on giving the Company the agreed notice period for the Resource within the Territory Labour Laws the

Resource is employed applicable at that time ***(please ask for guide on HR Laws for the Territory concerned as they vary)***

c) following the completion of the probation period for any Resource, not less than 2 months prior notice in writing or longer where the notice period for the Resource is greater than 2 months OR the Territory Labour Laws in the location require longer *(**please ask for the guide on HR Laws for the Territory concerned as they vary**).*

d) On such termination the Company will use its reasonable endeavours to return or destroy all materials and items connected with the role to the Client within 72 hours other than those that are legally required to be kept as per the location laws (HR or otherwise) in place at the time.

GENERAL TERMINATION CLAUSES APPLICABLE

6.5. All Termination Notices must be provided in writing to the other party to the contract details provided in this Agreement and to come into effect must be acknowledged as being received by the other party in writing within a maximum of 3 (three) working days. In the unlikely event of no acknowledgement being received, proof of postage of a recorded delivery letter to the address listed in this Agreement is agreed as "notice given".

6.6. If the Resource's contract of employment with the Company's Group Company is terminated for any reason either by the Resource or the Company's Group Company then the Resource will automatically end on the date on which the Resource's contract of employment terminates.

6.7. Upon termination of a Resource or the Agreement by the Client or the Company the Client will remain liable to pay all fees which become payable under clause 5 calculated on a pro-rata basis without any 'offset' up to the actual date of the Resource(s) last day.

6.8. All termination notice periods in addition will have the costs of any untaken holiday pay, any legally due accrued bonuses (if any) and any statutory redundancy costs applicable added as per each Resource's individual employment terms applicable within the Territory Labour Laws in which the Resource is employed. ***(please ask for guide on HR Laws for the Territory concerned as they vary)***

6.9. Upon termination of a Resource the Company will cease to perform any Services in relation to that Resource on the last day of the Resource's employment with the Company.

6.10. Any provision of the Agreement that expressly or by implication is intended to come into or continue in force on or after termination or expiry of the Agreement shall remain in full force and effect.

6.11. Termination of the Agreement shall not affect any rights, remedies, obligations or liabilities of the parties that have accrued up to the date of termination, including the right to claim damages in respect of any breach of the Agreement which existed at or before the date of termination.

7.0 WARRANTIES

7.1. Subject to clause 7.2, the Company warrants to the Client that it will perform the Services using reasonable care and skill.

7.2. The terms implied by Sections 3 to 5 of the Supply of Goods and Services Act 1982 are, to the fullest extent permitted by law, excluded from the Agreement.

7.3. The Company gives no warranty regarding the performance of the Resource in the Role and shall have no liability whatsoever to the Client in respect of any Losses incurred by the Client arising from any failure of the Resource to carry out the duties of the Role to the standards and requirements of the Client or from any act, default or omission of the Resource in carrying out their duties in the Role.

7.4. A Company employment contract in the territory in which each Resource will be employed will require the Resource to comply with the Client's confidentiality obligations and ensure that all Intellectual Property Rights in works created by the Resource in the Role are assigned to the Client via assignment from the Company's Group Company to the Company.

7.5. Each party warrants that it and each of its Group Companies will comply with all Applicable Laws relating to compliance with its obligations hereunder.

7.6. Each party warrants that it shall obtain and maintain all necessary licences and consents and comply with all relevant legislation as required to enable the Company to provide the Services, in all cases before the date on which the Services are to start.

7.7. The Client warrants that it shall comply with any additional responsibilities set out in the Resource Instruction Form or the Appendices to the Agreement.

7.8. The Client warrants that all activities carried out by any of the Client's Resources at their behest will be legal in the Territory concerned and fully indemnifies the Company in the case of any breach.

8.0 LIMITATION OF LIABILITY

8.1. Nothing in the Agreement shall limit or exclude any party's liability:

a) for death or personal injury caused by its negligence;

b) for fraud or fraudulent misrepresentation; or

c) for any other liability which cannot be limited or excluded by applicable law.

8.2. Subject to clause 8.1 the Company shall not be liable to the Client, whether in contract, tort (including negligence), misrepresentation, breach of statutory duty or otherwise arising under it in connection with the Agreement for any direct or indirect loss of profits, loss of sales or business, loss of agreements or contracts, loss of anticipated savings, loss of use or corruption of software, data or information, loss of or damage to goodwill or any consequential loss.

8.3. Subject to clause 8.1 the Company's total liability to the Client, whether in contract, tort (including negligence), misrepresentation, breach of statutory duty or otherwise arising under or in connection with the Agreement shall be limited in respect of each Year of the Agreement to 50% of the value of the Agreement for that Year subject to a maximum of £100,000.

8.4. Any terms regarding the Services implied by law are, to the fullest extent permitted by law, excluded from the Agreement.

8.5. If the Company's performance of its obligations under the Agreement is prevented or delayed by any act or omission of the Client or a Resource then, without prejudice to any other right or remedy it may have, the Company shall

a) be allowed an equivalent extension of time to perform its obligations,

b) not be liable for any costs, charges or losses sustained or incurred by the Client that arise directly or indirectly from such;

c) be entitled to payment of any sum due (without delay) in accordance with the timescales stated herein despite any such prevention or delay.

9.0 INDEMNITY

9.1. The Company's Group Company which employs the Resource shall be responsible for the deduction and payment of all employment & employer's taxes and dues, or holiday/sickness pay in the territory in which the Resource is employed, and the Company shall indemnify the Client against all liability to make such statutory payments that may be incurred by the Resource.

9.2. The Company shall indemnify the Client against all liability, assessment or claim arising from any Resource having at any time claimed or being held or deemed to have been an employee of the Client or been otherwise engaged directly by the Client including any claim for wrongful or unfair dismissal (other than as detailed in clause 11.3 below)

9.3. Where a Resource claim for wrongful dismissal, unfair dismissal, discrimination or breach of employment law in the Territory has been directly caused by the actions of a Client in direct contradiction of advice and recommendation of the Company or in contradiction of clause 6.3.2. resulting in a claim then the Indemnity given by the Company in clause 11.2 in respect to wrongful or unfair dismissal shall not apply and the Client will be liable for all costs incurred.

10.0 CONFIDENTIALITY

10.1. Each party undertakes that it and the Group Company or resources shall not at any time disclose to any person any confidential information concerning the business, affairs, customers, clients or suppliers of the other party except as permitted by clauses 10.2 and 10.4.

10.2. Each party may disclose the other party's confidential information:

a) to its employees, officers, representatives or advisers or those of any of its Group Companies who need to know such information for the purposes of carrying out the party's obligations under the Agreement. Each party shall ensure that any employees, officers, representatives or advisers to whom it discloses the other party's confidential information comply with this clause 10;

b) as may be required by law, a court of competent jurisdiction or any governmental or regulatory authority.

10.3. No party shall use any other party's confidential information for any purpose other than to perform its obligations under the Agreement.

10.4. The Company will be entitled to disclose appropriate information about the Client and the work required and where prior agreed with the Client as being necessary for the purpose, the Client's confidential information as agreed may be disclosed to any prospective candidate who is contacted by the Company during the search and recruitment process and to the Resource who is eventually appointed.

10.5. The Company will not accept any liability to the Client for any Losses incurred by the Client arising from any unauthorised disclosure or use by the Resource or any prospective candidate of the Client's confidential information.

11.0 DATA PROTECTION (Personal data)

11.1. The parties acknowledge that for the purposes of the Applicable Data Protection Legislation, the nature of the activity carried out by each of them in relation to their respective obligations under the Contract is that of an "Independent Controller" of the Personal Data where the other party is also "Controller". Each party will independently establish the purpose and means of the processing of the relevant personal data. Should this determination change, then each party shall work together in good faith to make any changes which are necessary to the Contract.

11.2. With respect to Personal Data provided by one party to another party for which each party acts as Controller but which is not under the Joint Control of the parties, each party undertakes to comply with the Applicable Data Protection Legislation in respect of their Processing of such Personal Data as Controller. Each party shall not do anything to cause the other party to be in breach of the Applicable Data Protection Legislation.

11.3. The parties shall be responsible for their own compliance with Articles 13 and 14 GDPR in respect of Personal Data for the purposes of the Contract. Each party will provide all such relevant documents and information relating to its data protection policies and procedures as the other party may reasonably require.

11.4. Each party in complying with its obligations in respect to Data Protection shall act as detailed in the attached ***Appendix 4***.

12.0 INTELLECTUAL PROPERTY

12.1. The Company will use its reasonable endeavours to ensure that all Intellectual Property Rights in any works created solely and exclusively by the Resource for the Client in the course of carrying out the Role and which relate exclusively to the Client's business (the "Works IPRs") are vested in either the Company's Group Company which employs the Resource or the Company, and that the Resource waives all rights (including "moral rights") in all Works IPRs.

12.2. In so far as the Works IPRs are vested in either the Company's Group Company or the Company then, subject to the payment of all sums due under the Agreement on the relevant due date, the Company shall procure that all its rights in the Works IPRs are assigned in full to the Client.

12.3. If, notwithstanding clause 12.1, any Works IPRs (including "moral rights" or rights to claim compensation) remain vested in the Resource then the Company will use its reasonable endeavours to procure that such are assigned to the Client or waived (as the case may be).

13.0 EMPLOYMENT RESTRICTION

13.1. During the term of the Agreement and for a period of 12 months following termination or expiry of such the Client will not and will procure that each of its Group Companies will not solicit, employ or engage in their business any Resource who has carried out a Role under the Agreement whether as employee, agent, sub-contractor or in any other capacity (and whether directly or indirectly through a separate legal entity) either on a full time or part time basis or on a temporary or permanent basis.

13.2. If either the Client or any of its Group Companies does not comply with the restriction in clause 13.1 then the Client hereby agrees to pay the Company on demand a fee equal to 100% of the annual Salary Charge which the Company was charging the Client for the Resource on the date on which the Resource's employment or engagement with the Company's Group Company terminated or expired. Such fee is to be paid within 14 days of issue.

14.0 ASSIGNMENT

14.1. The Client shall not assign, transfer, mortgage, charge, declare a trust over or deal in any other manner with any or all of its rights and obligations under this Contract without the prior written consent of the Company.

14.2. The Company shall be entitled to assign, subcontract, transfer, mortgage, charge, declare a trust over or deal in any other manner with any or all of its rights and obligations under this Contract without the prior written consent of the Client.

15.0 NO PARTNERSHIP OR AGENCY

15.1. Nothing in this Contract is intended to, or shall be deemed to, establish any partnership or joint venture between any of the parties, constitute any party the agent of another party, or authorise any party to make or enter into any commitments for or on behalf of any other party.

15.2. Each party confirms it is acting on its own behalf and not for the benefit of any other person.

16.0 ENTIRE AGREEMENT

16.1. The Agreement constitutes the entire agreement between the parties and supersedes and extinguishes all previous agreements, promises, assurances, warranties, representations and understandings between them, whether written or oral, relating to its subject matter.

16.2. Each party acknowledges that in entering into the Agreement it does not rely on, and shall have no remedies in respect of, any statement, representation, assurance or warranty (whether made innocently or negligently) that is not set out in this Contract.

16.3. Any descriptive matter or advertising issued by the Company, and any descriptions or illustrations contained in the Company's catalogues or brochures, are issued or published for the sole purpose of giving an approximate idea of the Services described in them. They shall not form part of the Agreement or have any contractual force.

16.4. Nothing in this clause shall limit or exclude any liability for fraud.

16.5. From time to time the Terms & Conditions of this Agreement will be updated and amended by the Company to reflect legal changes, Services provided and/or terms modification/update. ('Amended Terms") The Company will have the right to change all such terms and Services **so long as** the notice period provided for such change is not less than 4 (four) prior calendar months; the proposed Amended Terms are provided in writing to the contact details provided in this Agreement and in the event the Client is **not in agreement** with the changes proposed it has the right to give **6 (six) calendar months notice** to Terminate the whole Agreement or any Resources affected (if such changes are only affecting one or more Territory's). During that time none of the changes in the Amended Terms will come into effect. If no such termination notice has been served by the Client as per clause 6 then the parties agree all such notified Amended Terms will become a part of this Agreement at the end of the 4 (four) months advance notice.

17.0 THIRD PARTY RIGHTS

No one other than a party to this Contract shall have any right to enforce any of its terms.

18.0 NOTICES

18.1. Any notice given to a party under or in connection with this Contract shall be in writing and shall be:

a) delivered by hand or by pre-paid first-class post or other next working day delivery service at its main address; or

b) sent by email to its main email address.

18.2. Any notice shall be deemed to have been received:

a) if delivered by hand, on signature of a delivery receipt or at the time the notice is left at the proper address;

b) if sent by pre-paid first-class post or other next working day delivery service, at 9.00 am on the second Business Day after posting;

c) if sent by email, at 9.00 am on the next Business Day after transmission.

19.0 GOVERNING LAW

This Contract and any dispute or claim arising out of or in connection with it or its subject matter or formation (including non-contractual disputes or claims) shall be governed by and construed in accordance with the law of England and Wales.

20.0 JURISDICTION

Each party irrevocably agrees that the courts of England and Wales shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this Contract or its subject matter or formation (including non-contractual disputes or claims having first used an Alternative Dispute Resolution process).

21.0 FORCE MAJEURE

Neither party shall be in breach of this Contract nor liable for delay in performing, or failure to perform, any of its obligations (other than payment obligations) under this Contract, if such delay or failure result from events, circumstances or causes beyond its reasonable control. In such circumstances the time for performance shall be extended by a period equivalent to the period during which performance of the obligation has been delayed or failed to be performed.

22.0 SEVERANCE

If any provision or part-provision of this Contract is or becomes invalid, illegal or unenforceable, it shall be deemed modified to the minimum extent necessary to make it valid, legal and enforceable. If such modification is not possible, the relevant provision or part-provision shall be deemed deleted. Any modification to or deletion of a provision or part-provision under this clause shall not affect the validity and enforceability of the rest of this Contract.

If one party gives notice to the other of the possibility that any provision or part-provision of this Contract is invalid, illegal or unenforceable, the parties shall negotiate in good faith to amend such provision so that, as amended, it is legal, valid and enforceable, and, to the greatest extent possible, achieves the intended commercial result of the original provision.

23.0 SLAVERY & ANTI-BRIBERY

23.1. Each party shall during the term of the Agreement:

a) comply with all applicable laws, statutes, regulations, and codes relating to anti-bribery and anti-corruption including but not limited to the Bribery Act 2010 (Relevant Requirements);

b) not engage in any activity, practice or conduct which would constitute an offence under sections 1, 2 or 6 of the Bribery Act 2010 if such activity, practice or conduct had been carried out in the UK;

c) notify the other party (in writing) if it becomes aware of any breach of clause 23.1(a) or clause 23.1(b), or has reason to believe that it has received a request or demand for any undue financial or other advantage in connection with the performance of the Agreement;

d) immediately notify the other party (in writing) if a foreign public official becomes an officer or employee of it or acquires a direct or indirect interest in it and warrants that it has no foreign public officials as direct or indirect owners, officers or employees at the date of the Agreement. For the purpose of this clause, the meaning of adequate procedures and foreign public official and whether a person is associated with another person shall be determined in accordance with section 7(2) of the Bribery Act 2010 (and any guidance issued under section 9 of that Act), sections 6(5) and 6(6) of that Act and section 8 of that Act respectively.

23.2. Each party shall ensure that any of its agents, consultants, contractors, subcontractors or other persons engaged in performance of its obligations under this Agreement do so only on the basis of a written contract which imposes on and secures from such person terms equivalent to those imposed on it in this clause (Relevant Terms). Each party shall be responsible for the observance and performance by such persons of the Relevant Terms, and shall be directly liable to the other party for any breach by such persons of any of the Relevant Terms.

23.3. Breach of this clause shall be deemed a material breach under clause 6.2.(a) of these terms of business.

For and behalf of the Client	**For and behalf of Potentiam Ltd**
Name: _____	**Name:** _____
Position: _____	**Position:** _____
Date: _____	**Date:** _____

Company:

Potentiam

Appendix 1

For each Resource

RECRUITMENT			
	Activity	**The Company will use their best endeavours to carry out the following activities:**	**The Client will use their best endeavours to carry out the following activities:**
1.	**Job Specification**	Agree Job specification, Skills Set Matrix and KPIs for each Role with Client to the point of Client 'sign off' Where a technical Role, agree on the technical tests for the candidates to be asked to carry out to demonstrate their technical capabilities. (We will provide you with our recommended technical tests for your review, amendment or addition to, if needed with final signed authorisation to use)	Amend as necessary in discussion with the Company, the Job Specification, Skill Set Matrix and KPIs provided by the Company to the point of 'sign off'. Respond promptly to any questions or clarifications on the Role and how it fits in with the existing team structure. Where a technical Role promptly review and agree the technical tests proposed by the Company (or add where required) for each Role to be undertaken by candidates
2.	**Candidate Search**	Run a local search for suitable candidates	Provide on-going feedback on applicability of proposed candidates if needed (essential for the more technical/professional roles)
3.	**Search Reporting**	Provide a weekly progress report on candidate search progress.	Provide available times & dates for interviews to be conducted once shortlist finalisation is nearing
4.	**Interviews and candidate selection**	Supply a short list of candidates with comparative analysis against the Job Specification, Skills Set Matrix, and technical tests if required for the role. If no candidates on the short list are deemed a good fit to review the Job Specification, Skills Set Matrix and KPIs and Technical tests amend/update, if appropriate, and re-run the search.	Promptly review and discuss each candidate on the short list and carry out the interviews and any additional tests or reviews required to be able to complete the assessment and select the chosen candidate. Select the best candidate to be made the Role offer.
5.	**Candidate Resource Sign-Off**	Provide a Resource Sign-Off Form containing Role, Title, total Resource Salary Charge, hours of work,	Sign the provided Resource Sign-Off Form containing:

		holidays, forecast next year's budget total costs commensurate with Role development (if any) and any additional benefits if provided plus the desired start date for signature by the Client.	Role, Title, total Salary Cost, hours of work, holidays, forecast next year's total costs commensurate with Role career development and any additional benefits if provided plus the start date accepting the selected candidate.
6.	**Candidate Offer Letter Sign Down & Start Date Confirmation**	Obtain candidate signature to Offer Letter & confirmation of start date. Once signed, provide a contract of employment for signature by the candidate subject to any references or other checks that may be required by the Client.	
7.	**References & Other checks**	Conduct references checks where applicable and required. Discuss the references received back and obtain Client confirmation of satisfactory references and proceed with hiring.	Request references & other checks if required. (additional costs maybe applied depending on 'other checks' requested) Review references received and confirm 'confirmation of satisfactory reference - proceed with hiring'

ON-BOARDING PROCESS

	Activity	**The Company will use their best endeavours to carry out the following activities:**	**The Client will use their best endeavours to carry out the following activities:**
8.	**Premises and IT**	Provision of location in office and a desk, chair, Internet connection and Standard Provision of IT Hardware & Operating System for a Resource to carry out their duties plus any additional technology requirements requested for the Role.	Provide advance direction on any specific additional IT Hardware or facilities requirements over and above the 'standard issue' provided.
9.	**Set up 90 Day 'On-Boarding' Process for Probation Period**	The Company will provide a template for the 90 day 'on-boarding process' Discuss and finalise with the client the 90 day on-boarding plan ready for use. Agree the appropriate KPIs for the probation period. Complete the Potentiam induction.	Review, discuss, amend and agree the 90 day 'on-boarding process' for each Resource who has been hired. Sign down the 90 day 'on-boarding process' including the initial probation KPIs appropriate. Provide the name, position and full contact details of the individual who is undertaking the probation review.

			Clarify which senior manager has the final decision on satisfactory performance (provide full contact details).
10.	**Probation Period Review Points**	Provide regular structured Feedback during the probation period as agreed in the 90 day on-boarding plan on each of the new Resource's progress in the role.	Provide Feedback on each Resource's performance and progress during the probation period as per the agreed 90 day on-boarding plan. Attend the structured check-ins with the Company by the assessing manager. Raise any concerns/issues as and when they occur (timeously) and agree specific actions to be taken to resolve the issues.
11.	**Confirm Successful Probation**	Obtain written confirmation from the Client of the Resource(s) successful completion of probation. Re-confirm with the Client the KPIs originally set for the Role are still correct. Agree any adjustments with the Client as appropriate.	Sign off the confirmation to the Company of the Resource(s) successful completion of probation in a timely manner to meet the 90 day probation period. Confirm the KPIs for the role after probation and agree to any adjustments as required.
		Notify the Resource of their successful completion of Probation.	
12.	**Fail Probation**	If the Resource fails to successfully pass probation to agree with the Client to either extend the Resource's probation* or end the Resource's employment and commence the recruitment of a new Resource to replace the unsuccessful one.	Decide on whether to extend the Resources probation* or to rehire another Resource to replace the unsuccessful one. *(* please note some Territory labour laws have restrictions on probation periods)*

HUMAN RESOURCES

	Activity	**The Company will use their best endeavours to carry out the following activities:**	**The Client will use their best endeavours to carry out the following activities:**
13.	**Career plan**	Discuss each Resource's career plan from their current Role as identified in the Vertical Stack relevant to their Role and the Salary level forecast for the Territory over the next 12-36 months	Agreement of a retention plan and career track and proposed Salary cost expectation for each Resource over the next 12-36 months.

14.	**Training**	Assist in arranging training (at the client's expense) for each Resource as agreed for the role and the individual Resource's Career Plan.	Provide training plan and agree who will carry out the training and when.
15.	**Monthly HR Report including Staff Monitoring**	Monitor working behaviour & attendance, sickness and holiday of each Resource & present a monthly report on all Resources. ('Monthly HRBP Report') (or more frequently if deemed necessary for some Resources)	Review the Monthly HRBP Report and agree to any actions with the HRBP that are required.
		Review each Resource's KPIs vs performance as agreed at the point of recruitment OR as amended in writing.	Provide the required information on each Resource's KPIs to the HRBP to accurately report performance against each agreed KPI measure for the role.
		Each month through the Company HRBP discuss the findings of the: a. KPIs b. working behaviour c. attendance, sickness and holiday for each Resource with the Client to review any identified issues.	Set a date for a regular monthly meeting to discuss the findings of the monthly HR reports covering a. KPIs b. working behaviour c. attendance, sickness and holiday with the allocated Company HRBP to review any identified issues.
		Where shortcomings in performance of any Resource are found to advise & agree with the Client the actions to be taken. (always being consistent with the Labour Laws of the Territory).	In the monthly HRBP meeting (or promptly soon after) agree specific actions to be taken on any performance issues identified.
		Where the issues identified require consultation with the Head of HR in the Territory concerned arrange a prompt meeting with the Client to discuss and agree next actions	Where the issues identified require consultation with the Head of HR in the Territory concerned arrange a prompt meeting with the Client to discuss and agree next actions
16.	**Appraisal**	Assist the Client in performing a '6 monthly' mini-appraisal and a '12 monthly' full appraisal. Provide guidance on Salary forecasts as appropriate for each Resource (annually for seniors and more frequently for juniors).	Provide timely **(within 5 working days)** performance Feedback to Resources and the Company following the completion of each Resource's Appraisal. Highlight any identified issues that raise concerns about each Resource's ability to perform their role, keeping the

		Agree with the Client specific actions for each Resource as identified from the Appraisal and agree to any Salary change.	Company fully informed of such feedback (within 5 working days) of Appraisal completion. On receipt of the Salary guidance from the Company confirm a decision on any recommended change promptly **(within 5 working days).**
17.	**Annual Salary & Role Review**	Provide annual Salary and Role guidance for the Resource concerned and recommend what the Company analysis suggests the Salary change (if any) should be for the coming year and the best forecast for the next year. (based on career progression and market conditions) Once discussed and agreed with the Client the production of the revised Role and/or Salary and any additional benefits and/or bonuses and date of commencement of the new Salary in the Potentiam Salary Change form for Client signature for implementation. If a junior role is in a competitive sector a salary review may need to occur every 4-6 months	Review the Role & Salary guidance provided by the Company for each Resource each year and agree to any changes to be made. Promptly sign the annual agreed Role & Salary Change Form so the Company can affect any change required. Complete the same.
18.	**Bonus Confirmation (If any)**	Confirm the eligibility of any bonus payment as per the Resource Sign-Off Form previously agreed. Obtain signed authorisation for the bonus amount to be paid via the "Potentiam Bonus Payment Approval Form" from the Client. Authorise finance to pay the bonus to the Resource(s) concerned.	Confirm the eligibility and amount of any bonus for each Resource via the prompt signing of the "Potentiam Bonus Payment Approval Form".

Potentiam

Appendix 2

For the Client

ACCOUNT MANAGEMENT			
		The Company will use their best endeavours to carry out the following activities:	**The Client will use their best endeavours to carry out the following activities:**
1.	**Account Management**	Provision of an account manager that will promptly and appropriately respond to issues raised by the Client.	Respond promptly and appropriately to any issue raised by the account manager using the required level of seniority appropriate for the matter.
		Perform regular account reviews with the Client every quarter or as requested by the Client.	Participate fully in account reviews with the appropriate level of seniority in a timely manner.
2.	**Talent Acquisition & HR Teams introductions**	To introduce and support the Company Talent Acquisition and HR Teams to ensure a sound understanding of a Client's needs to ensure both teams are correctly and fully briefed.	To ensure clear communication of specific needs for any new Resource to the recruitment team and any changes to existing Resource(s) through the appointed account manager.
		To assist in explaining local protocols and customs in the Territory concerned that may impact any role being hired.	To take on board any advice on local protocols and customs and Feedback on how any aspect might impact any Resource being hired or is already a Resource.
3.	**Guidance on any item of the Commercial Terms**	To provide guidance and explanation on any aspects of the commercial agreement.	To raise all commercial requests directly to the Potentiam Account Manager including salary intelligence, training, facilities and services.
4.	**Issue Resolution**	To provide a final point of escalation for all HR and service issues to Client stakeholders as well as all commercial issues. e.g. salary increases, training course costs, and any other out of the ordinary costs.	Ensure the Account manager is copied in on any HR related queries
MULTI-YEAR Off-SHORE STRATEGY & 20 WEEK REVIEW			
5.	**Off-Shore Strategy**	The creation of a Multi-year 'Offshore Strategy' with the CEO and senior Management Team.	Input into the "Offshore Strategy' creation in particular the provision of the data needed on Resource costs and departmental structures and key business development plans and HR needs.

		The breakdown of the Multi-year strategy into yearly and 20 week executables.	Review and agreement to the Multi-year strategy and 20 week executables.
		The briefing to the key departmental managers of the Strategy and identification of any key issues restricting implementation.	CEO led presentation and implementation plan of the 'Offshoring Strategy' with the management team and the identification of any issues/concerns raised. Discussion with the Company on any issues or concerns raised and identification of appropriate solutions.
6.	**Departmental Strategy**	The creation of individual Departmental Strategies with the assistance of a Technical Advisor where needed and authorised by the Client	CEO/Departmental Director/Head input into the Departmental Strategy creation with the assistance of the Technical Advisor (if utilised) to the point of agreement.
		Obtain 'Buy in' from the Departmental Director/Manager and sign off.	Assist where necessary to obtain the Departmental Director/Manager 'Buy in' on the Departmental Strategy.
			Agree the Department Execution Plan and set up the correct incentives for successful completion.
7.	**20 Week Review**	Review the strategy execution progress every 20 weeks with the CEO to identify what is working and where issues are arising.	CEO to review the strategy execution progress with the Potentiam Client Director every 20 weeks to identify any issues arising and agree actions as appropriate.
		Advise on Resource Budget costs for the next fiscal year and put forward recommendations.	Review recommendations on Resource Budgets for the next fiscal year and agree budgets so internal managers have signed off for required budget.
		Input into solutions for the identified issues and follow through to resolution.	Agree solutions for the identified issues and follow through to resolution